

requesting party to obtain the object of its discovery. *Caryl Richards, Inc. v Superior Court* (1961) 188 Cal.App.2d 300, 304. See *Juarez v Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 388. Whatever penalty is imposed should be “appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” *Deyo v Kilbourne* (1978) 84 Cal.App.3d 771, 793. Sanctions are awardable to parties, not their attorneys. *Poe v Diamond* (1987) 191 Cal.App.3d 1394, 1399. The trial court may impose sanctions for a pattern of discovery abuse. It is not limited to imposing sanctions for each violation of the rules governing depositions or other discovery methods.

Notably absent from the thousands of pages before the Court is any representation that *at any time*, any of the counsel for any of the Defendants met or conferred with Plaintiffs’ counsel. Service of amended responses *may* cure issues and moot the need for further meeting and conferring, but given the record before the Court, that does not appear to have been the case and it was counsel’s obligation to follow up. Sanctions shall be awarded as follows:

- (1) From Manor Care and PES, jointly with counsel Petrullo, APC: \$4,000
- (2) From HCR Manor Care and PHS and current counsel Buchanan Ingersoll & Rooney: \$2,565.
This particular sanction is stayed and will not be imposed *if* counsel for these Defendants, in good faith, participates in further meeting and conferring to resolve the issues raised that are not wholly resolved by this order above **in person at a location of Plaintiffs’ counsel’s choosing.**

7. 9:00 AM CASE NUMBER: C24-02439

CASE NAME: SHERMAN KING VS. AUGUSTINE REDD

***HEARING ON MOTION IN RE: SANCTIONS**

FILED BY: KING, SHERMAN

TENTATIVE RULING:

Plaintiff Sherman King, in pro per, brings this Motion for Sanctions pursuant to Code Civil Procedure section 128.7, alleging that counsel for Defendants Augustine Redd and Darnell Redd made false statements. It is unclear the pleading to which he refers, but it appears to be the Response to the Order to Show Cause filed August 18, 2025. Defendants have responded with an extremely brief filing.

“Section 128.7 requires that all pleadings filed with the court be signed by an attorney of a represented party or, if the party is not represented by counsel, by the party. (§ 128.7, subd. (a).) The signing of a filed pleading constitutes a certification by the person signing it that after a reasonable inquiry, the pleading (1) is not being presented for an improper purpose; (2) contains positions that are not frivolous; (3) alleges factual matter having evidentiary support; and (4) contains denials of factual allegations having evidentiary support. (*Id.*, subd. (b).) The court, after proper statutory notice, may impose sanctions upon the attorneys, law firms, or parties who have improperly certified a pleading in violation of the statute. (*Id.*, subd. (c).)

Plaintiff King asserts that Counsel Lucas “Lied to the court that he made an effort to resolve this case with me.” He also appears to allege dishonesty in court proceedings outside the answer where Counsel Lucas “blam[ed him] for [Defendants’] attorney not showing up,” stating that “work that [Plaintiff King] performed was done ten years ago,” and further stating “that [Plaintiff King] was estranged from” Defendant Redd.

The timing for a motion under section 128.7 requires that the motion be served, but not filed for at least 21 days to allow the other party to correct their conduct. If the conduct is not changed or the offending motion withdrawn after 21 days then the party requesting sanctions may file their motion. (Code of Civil Procedure section 128.7(c)(1); *Barnes v. Department of Corrections* (1999) 74 Cal.App.4th 126, 130.) Here, there is no indication of when Plaintiff King served the motion, but it was filed October 6, 2025. There is therefore no indication Plaintiff complied with the procedural requirements of section 128.7.

Moreover, Plaintiff King has filed a “Declaration” but it contains no actual facts. It appears to be a template that Plaintiff King completely failed to update. That would be less of an issue if it contained *any* facts relevant to the motion for sanctions—i.e. statements under penalty of perjury demonstrating that Counsel Lucas did, indeed, mislead the Court in any material way. Given that there is no competent evidence that Counsel Lucas has violated section 128.7(b), this Motion is **denied**.

8. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
HEARING ON DEMURRER TO: COMPLAINT OR IN ALT JUDGMENT ON THE PLEADINGS
FILED BY: EMINENT CAPITAL INVESTMENTS LLC
TENTATIVE RULING:

Before the Court is a demurrer filed by defendants, SV Quick Capital Corporation and Eminent Capital Investments, LLC. The proofs of service state the complaint was personally served on defendants in May of 2025. In October of 2025, defendants responded by filing the present demurrer.

Code of Civil Procedure section 430.41 sets forth the meet and confer requirements for a demurrer. Subdivision (a) states that, before filing a demurrer, “the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

Subdivision (a)(2) addresses timing: It requires the meet and confer happen “at least 5 days before the date the responsive pleading is due,” but also allows for a demurring party to file a declaration in order to unilaterally obtain additional time to meet and confer. Here, defendants failed to comply with the timing requirements as no meet and confer efforts were initiated until several months later.

Still, plaintiff did not take any defaults and the Court will consider the demurrer (which is not properly a “motion for judgment on the pleadings,” despite the identical legal standard, because no answer has been filed at this time).